

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISDICTION)

Criminal Miscellaneous Case No. 19130 OF 2013

IN THE MATTER OF:

An application under section 561A of
the Code of Criminal Procedure.

And

IN THE MATTER OF:

Md. Milon Howlader

...Accused-Petitioner

-vs-

The State

...Opposite Party

And

None appears

- for the Accused-Petitioner.

Mr. B.M. Abdur Rafell, DAG with

Mr. Binoy Kumar Ghosh

Mr. A.T.M Aminur Rahman, A.A.Gs.

..... For the State

Heard on: 14.12.2023

And Judgment on: 28.02.2024

Present:

Mr. Justice Md. Salim

and

Mr. Justice Shahed Nuruddin

Shahed Nuruddin, J:

The instant Rule was issued calling upon the
opposite party to show cause as to why the judgment

and order dated 21.06.2012 passed by the learned Judge (District Judge) of the Nari-O-Shishu Nirjatan Daman Tribunal No.1, Dhaka in Nari-O-Shishu Case No. 244 of 2005 arising out of Shyampur Police Station Case No.19 dated 13.02.2005 convicting the petitioner under section 9(1) of the Nari-O-Shishu Nirjatan Daman Ain, 2000 (as amended in 2003) and sentencing him thereunder to suffer rigorous imprisonment for life and a fine of Tk. 1,00,000/- should not be quashed and/or such other or further order or orders passed as to this Court may seem fit and proper.

The prosecution case, in short, is that one Shahinur lodged a First Information Report with the Shyampur Police Station on 13.02.2005 that on 03.01.2005 at 10.00 A.M. her daughter Moyna was playing with her sister's son Mainuddin near the house of his uncle Sultan Howlader. At that time Moyna was called away by the accused Md. Milon Howlader son of Sultan Howlader to their house and whereby the

accused committed rape against her will. At about 11.00 A.M. another tenant Surjan Begum took the victim to informant's house and the informant heard the occurrence from the victim. Thereafter the victim was sent to hospital for treatment and lodged the first information report against the accused. The informant also stated that after some days of the occurrence his uncle Sultan Howlader shifted his house to East Zurain and resided there. Hence the case.

After the conclusion of the investigation, the investigating officer submitted the charge sheet on 30.06.2005 against the accused petitioner under section 9(1) of the Nari-O-Shishu Nirjatan Daman Ain, 2000 (as amended in 2003).

Thereafter, the case record was sent to the Nari-O-Shishu Nirjatan Daman Tribunal No.1, Dhaka and the Tribunal having taken cognizance of the offence framed the charge on 20.03.2006 against the accused under section 9(1) of the Nari-O-Shishu Nirjatan

Daman Ain, 2000 (as amended in 2003) and the trial was held in absentia of the accused.

During the trial prosecution examined 7 witnesses out of 13 charge sheeted witnesses in which P.W.1 Shahinur Begum is the informant, P.W.2 Moyna is the victim, P.W.3 Shamsun Nahar is the mother of the informant, P.W.4 Eyaron Begum is the aunt of the informant, P.W.5 Shahjahan is the husband of the informant, P.W.6 Mostofa Kamal is the S.I. and P.W.7 is the part investigation officer of this case.

Upon the aforesaid evidence on 21.06.2012 the Tribunal found the accused petitioner guilty and convicted him under section 9(1) of the Nari-O-Shishu Nirjatan Daman Ain, 2000 (as amended in 2003) and sentencing him to suffer rigorous imprisonment for life and to pay a fine of Tk.1,00,000/-.

The accused petitioner is a man of Bakergonj Police Station under the district of Barisal and at the time of occurrence he is a boy of 14 years; he did not

aware of the occurrence or the case initiated in Dhaka City; the trial was held in absentia of the accused petitioner. After knowing of the information of the judgment and order the accused petitioner voluntarily surrendered before the trial Court on 03.10.2012.

The accused petitioner states in the petition that the first information report is itself a belated one i.e. First Information Report was lodged after 40 days of the alleged occurrence and as such the impugned judgment and order of conviction and sentence are liable to be quashed in order to prevent abuse of the process of Court as well as to secure the ends of justice.

Despite the matter appearing in the cause list for hearing, no one feels to appear on behalf of the petitioner to press the rule. However, in the presence of Mr. B.M. Abdur Rafell the learned Deputy Attorney General, we are inclined to dispose of the rule on merit.

Mr. B.M. Abdur Rafell, the learned Deputy Attorney General appearing for the State opposes the rule.

On perusal of the record, it appears that the FIR was lodged after 40 days from the date of the occurrence. The learned trial Court on the basis of the evidence of prosecutrix P.W.2 whose age was 5(years) at the time of occurrence, P.W.1 who is the informant and mother of the victim, P.W.3 grandmother of the victim and P.W.5 father of the victim convicted the accused petitioner under section 9(1) of the Nari-O-Shishu Nirjatan Daman Ain, 2000 (as amended in 2003) and sentenced him life imprisonment and fine of Tk. 1,00,000/- (one lac).

On perusal of the prosecution witnesses it reveals that informant P.W.1, P.W.3, P.W.5 are relatives and they did not see the occurrence. All of them have given testimony to the Court after hearing the incident from the victim Mayna.

On perusal of the evidence of victim P.W.2 it reveals that the statements made by the victim in chief examination and statement made in reply to the interrogation of the learned trial Court do not appear to us that a six years old child can be made such a good articulated statement. Usually, an adult person, while making any deposition before any Court becomes a bit nervous. In the present case, it appears to us that the victim in the course of her making deposition was being dictated by some person. On perusal of the record, it appears to us that the accused petitioner did not make any confessional statement under section 164 of the Code of Criminal Procedure before the magistrate. It is also important to note here that there is no cogent explanation as to the delay in lodging the FIR. The victim also made a statement that there was blood in her pant. However, we do not find any seizure list from the record seizing the pant of the victim which is a very important alamat of the case. The time of occurrence is

at 10.00 a.m. as it appears from the record. It is reasonable that there are many people available at the time in an urban area. However, the prosecution did not produce any neutral witnesses. We also observed that though the prosecution produced a medical report it appears from that report that the victim was examined by the medical officer on 09.03.2005 long after 2(two) months 6(six) days from the date of occurrence. The informant who happened to be the mother of the victim at the time of lodging the FIR in her explanation as to delay stated that delay caused in filing the Ejahar because she was in the hospital for treatment of the victim. From the statement of the informant, it appears to us that the submitted medical report cannot be treated as a document relying upon which it can be said beyond reasonable doubt that the victim was rapped by the convicted accused person. If the explanation of delay made by the informant is considered to be true it can very safely be said that soon after the time of

occurrence, the victim was admitted to the hospital by the informant and it is reasonable that medical examination of the victim should have been done soon after the date of occurrence. But it appears from the record that the victim was examined long after 2(two) months and 6(six) days from the date of occurrence. Moreso, the medical officer Dr. Gulshan Ara Akhter who examined the victim was not examined before the Court, so we have serious doubt as to the genuineness of the medical report. It is our considered view that the case is a case of no evidence and the conviction should not be sustained.

Prosecution did not produce P.W.13 Md. Sakhawat Hossain the Investigating Officer of the instant case. Moreover, the prosecution has failed to give any explanation for his absence to the Court.

We anxiously perused the impugned judgment, evidence and other materials on record. The learned Judge of the trial Court observed that if the evidence of

the prosecutrix is found otherwise believable and trustworthy and does not suffer from any infirmity and disqualification, in that case, the sentence can be awarded based on the evidence of the victim. But in this case, the evidence of the victim P.W.2 is not believable and trustworthy. Without examining the doctor who examined the victim and the Investigating Officer who submitted the charge sheet, the learned trial Court convicted the accused petitioner under section 9(1) of the Nari-O-Shishu Nirjatan Daman Ain, 2000 (as amended in 2003) and sentenced him life imprisonment and a fine of Tk.1,00,000/- (one lack) which is not legal in the eye of law.

Non-examination of the medical officer who prepared the medical examination report in a prosecution case casts serious doubt as to the veracity of the allegations.

The non-examination of the Investigating Officer in Criminal Cases can have significant consequences as

it may undermine the principle of fair trial and due process, as the defence is deprived of the opportunity to cross-examine the officer and challenge their findings, biases, or omissions. Non-examination of the Investigating Officer may result in incomplete investigations.

Considering all these aspects noted above, we are inclined to make the rule absolute and thereby set aside the judgment and order of conviction and sentence.

In the result, the Rule is made absolute.

Let the judgment and order dated 21.06.2012 passed by the learned Judge, Nari-O-Shishu Nirjatan Daman Tribunal No.1, Dhaka in Nari-O-Shishu Case No. 244 of 2005 arising out of Shyampur Police Station Case No.19 dated 13.02.2005 convicting the petitioner under section 9(1) of the Nari-O-Shishu Nirjatan Daman Ain, 2000 (as amended in 2003) and sentencing him thereunder to suffer rigorous imprisonment for life and to pay a fine of Tk. 1,00,000/- is set aside and the

accused petitioner is acquitted of the charge as framed against him.

Let the accused petitioner Md. Milon Howlader, son of Md. Sultan Howlader is released from jail at once if he is not wanted in connection with any other case.

Let a copy of this judgment and order along with L.C.R be sent down to the Court below at once for information and taking necessary action.

Md. Salim, J.

I agree.